

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOY ORTEGA,

Petitioner

VS.

OSCAR ERNESTO LOPEZ,

Respondent

) Case Number: FDI-23-798315

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: SET ASIDE ENTRY OF DEFAULT AND ALLOW RESPONDENT TO
FILE A RESPONSE

TENTATIVE RULING

As there is no indication in the record that Mother was served with a copy of the Tentative Ruling Instructions, as required by San Francisco Local Rule 11.7(D)(3)(a), the parties are ordered to appear in-person or by Zoom video at 9:00 AM in Dept. 404 on 8/27/2026. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, absent good cause shown, the Court intends to adopt the following findings and orders.

A. Procedural History

- 1) Petitioner Joy Ortega (Mother) and Respondent Oscar Ernesto Lopez (Father) married on 4/2/2017. Mother contends the parties separated on 3/1/2019, for a marriage of 1 year and 11 months. Father contends the parties separated in November 2018, for a marriage of 1 year and 4 months. The parties have one minor child, De' Angelo (DOB: 5/16/2014, age 12).
- 2) On 7/6/2023, Father filed a Petition for Dissolution in Alameda County.
- 3) On 7/10/2023, Mother filed a Petition for Dissolution in San Francisco County.

- 1 4) On 4/30/2024, Alameda County granted Mother's request to transfer venue of the parties'
2 dissolution action to San Francisco County.
- 3 5) On 7/11/2024, the Alameda County case file was transferred to San Francisco County.
- 4 6) On 7/12/2024, the Court entered Father's default, upon Mother's request.
- 5 7) On 11/5/2024, Mother submitted a proposed True Default Judgment, which was rejected by a
6 clerk on 12/5/2024 due to various errors.
- 7 8) Between 2023 – 2025, both parties appeared in this case for multiple hearings on multiple issues.
8 The most recent order was filed on 11/24/2025 following a hearing which occurred on 11/6/2025
9 before Judge Wiley. The order notes that both parties appeared for the hearing via Zoom. The
10 order maintains prior sole legal and sole physical custody of the minor child with Mother.
- 11 9) On 5/13/2026, Mother again submitted a proposed True Default Judgment for the Court's review.
12 It was rejected by a clerk on 6/3/2026 due to various errors.
- 13 10) On 7/7/2026, Mother again submitted a proposed True Default Judgment for the Court's review.
14 It was again rejected by a clerk on 7/16/2026 due to various errors.
- 15 11) Now on for hearing is Father's Request for Order filed 7/2/2026 asking the Court to set aside
16 Father's default and allow Father to file a Response to the Petition in this case. Father states, "At
17 the time this matter was proceeding, Oscar was detained by immigration and had difficulty
18 preparing and filing a Response. Oscar has since been deported and remains outside of the United
19 States, which has made it more difficult for him to address the default and move the case forward
20 without court intervention."
- 21 12) Per the Proof of Service filed 7/7/2026, Father's Request for Order was mailed to the address the
22 Court has on file for Mother on 7/2/2026.
- 23 13) Mother did not file a Responsive Declaration.

24 **B. Findings and Order**

- 25 1) The Court finds good cause to grant Father's request to set aside his default. Father's default is
26 hereby vacated.
 - 27 2) Father may file a Response to the Petition no later than 9/30/2026.
 - 28 3) The Court will prepare the Findings and Order After Hearing.
- 29